

Police Power in Michigan: Zoning

Zoning is an area of police power that impacts private landownership and the use of that land. If anyone were allowed to build anything anywhere, well, talk about a mashup. You'd have belching factories next to elementary schools, and used car lots within residential neighborhoods. Zoning is used to separate incompatible uses. Cities or counties segment land into districts, which appear on a zoning map. The permissible use of the land within each district is stated in the zoning ordinance. Examples of zoning types are commercial, residential, manufacturing, industrial, and mixed use.

Zoning changes over time as the needs of the community change. When zoning changes occur, the uses that were once permissible but are no longer allowed due to zoning changes are said to be non-conforming, and the use is "grandfathered" in. Grandfathered properties may continue-but may not expand-the non-conforming use, and when the property changes hands, the grandfathering may no longer apply. In some cases, the use of the grandfathered property must be brought into compliance with the new zoning rules by a specified deadline.

What happens when the opposite happens-the owner of a property wants to use the property in a way that's not allowed by current zoning? The owner has a couple of options:

Obtain a variance: A variance allows the owner to deviate somewhat from the requirements of the zoning ordinance, such as building a second dwelling on a 7,437-square-foot lot when zoning calls for a minimum of 7,500 square feet for a second property. Variances may be allowed when:

- The zoning as it stands poses a hardship to the landowner
- The hardship is specific to that owner (e.g., all property owners in the area don't have the same issue)
- A variance wouldn't severely impact neighboring properties

Spot zoning: Spot zoning is a zoning change for one property only, so that a residential property may be changed to commercial zoning, for instance. Unless the zoning change benefits the community, it will not be approved.

You may be wondering where the zoning districts and ordinances are created in the first place. City and county planning boards have the responsibility to establish land use controls in the communities they serve.